

Defendant did not act with substantial justification.

3. Moreover, monetary sanctions are mandatory pursuant to Code of Civil Procedure section 2033.280. Code Civ. Proc. § 2033.280(c); see *St. Mary v. Superior Court*, *supra*, 223 Cal.App.4th at 776 (“The court must also impose monetary sanctions upon the party and/or the attorney for the failure to serve a timely response to the RFAs.”).
4. The Court has considered the appropriate amount of monetary sanctions. In fixing the amount of monetary sanctions, the Court has considered all evidence in the record before the Court, including the Supporting Declaration and Opposition Declaration. The Supporting Declaration contain what appear to be erroneous statements as to scope of work performed, referencing “reviewing the evasive responses, drafting the meet and confer correspondence...” See Supporting Declaration, ¶15. No discovery responses had been received as of the date of the original Supporting Declaration and no meet and confer was described in the Supporting Declaration, so these portions of the described work appear to be in error. Moreover, the other estimated time did not come to pass, as responses were served and no reply filed. In addition, as noted above, the amount of sanctions is mitigated by the service of substantially code compliant responses after the filing of the motion. The Court reduces the time to one half hour (0.50 hrs.) at the stated hourly rate of \$250.00, plus a \$60.00 filing fee. The Court finds that such sanctions are reasonable expenses, including attorneys’ fees, incurred by Plaintiff as a result of the foregoing sanctionable conduct by Defendant.

#### Disposition

The Court further finds and orders as follows:

1. The Motion to Deem Admissions is DENIED IN PART and GRANTED IN PART.
2. Defendant shall pay monetary sanctions to Plaintiff in the amount of **\$185.00** (the “Monetary Sanctions”). The Monetary Sanctions shall be paid within thirty (30) days from notice of entry of this order. The motion is otherwise DENIED.
3. The Court shall issue the order after hearing.

**8. 9:00 AM CASE NUMBER: L25-05764**

**CASE NAME: CAPITAL ONE N.A. VS. ALLEN BREZAC**

**\*HEARING ON MOTION IN RE:**

**FILED BY: CAPITAL ONE N.A.**

**\*TENTATIVE RULING:\***

Plaintiff Capital One, N.A. (“Plaintiff”) filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted on October 6, 2025 (the “Motion to Deem Admissions”). The Motion to Deem Admissions was set for hearing on December 16, 2025.

The motion is unopposed.

### Background

Plaintiff served Defendant Allen Brezac (“Defendant”) with a Requests for Admission (Set One). See Declaration of Brian Langedyk filed October 6, 2025 as part of Motion to Deem Admissions (“Supporting Declaration”), ¶12 and **Exhibit 1** thereto (the “RFAs”). The RFAs were served on July 16, 2025 by mail. *Id.* at ¶13 and **Exhibit 1 [attached Proof of Service dated July 16, 2025 (the “Proof of Service”)]**.

With a five-calendar day extension for service of the RFAs by mail, the responses were due to be served on or before August 20, 2025 (30 days from and after July 16, 2025 was August 15, 2025 and five calendar days thereafter fell on August 20, 2025). No responses were received by that deadline or through the time of the filing of the motion. See *id.* at ¶13.

### Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the discovery requests at issue:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. No opposition or other responsive pleadings by Defendant have been filed with the Court.

### Sanctions

Plaintiff does not seek imposition of sanctions.

### Disposition

The Court further finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion papers. **However, THE PARTIES ARE ORDERED TO APPEAR to confirm whether Defendant was duly served with the motion papers *which contained notice of the assigned hearing information at the time of service or if separate notice of the assigned hearing date was otherwise subsequently given.***
2. Subject to Paragraph 1 above, the Motion to Deem Admissions is GRANTED.
3. The truth of the facts recited in Attachment 1, Nos. 1 through 8, to RFA No. 1 are DEEMED ADMITTED by Defendant.
4. The genuineness of the document attached to the RFAs (defined as the “Terms and Conditions”), pursuant to RFA No. 2, is DEEMED ADMITTED by Defendant.
5. A proposed form of order was lodged with the Court which the Court shall execute and enter.

9. 9:00 AM CASE NUMBER: L25-10332  
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. SHELLY ROBINSON  
\*MOTION/PETITION TO COMPEL ARBITRATION  
FILED BY:  
\*TENTATIVE RULING:\*

Defendant Shelly Robinson (“Defendant”) filed a Motion to Compel Arbitration and Stay Proceedings on October 31, 2025 (the “Arbitration Motion”). The Arbitration Motion was set for hearing on December 16, 2025.

A Proof of Service of the motion on the plaintiff American Express National Bank (“Plaintiff”) has been filed.

Plaintiff filed an Opposition on December 1, 2025.

#### Background

Contractual arbitration, also called private or nonjudicial arbitration, is a procedure for resolving disputes that arise from the parties’ agreement. See CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) (“CJER Civ. Proc. before Trial”), § 3.37. Arbitration involves the waiver of the right to a jury trial and generally involves limits on the scope of judicial review of an arbitration decision. *Id.*

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, **arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate.** Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

A petition to compel arbitration is heard “in a summary way in the manner ... provided by